

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 19-023

**Amendments to Title 6, Chapter 1, Article B of the Chickasaw Nation Code
(Child Support Guidelines)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, on June 21, 2002, the Chickasaw Nation enacted PR19-019 which established Child Support Guidelines for the Chickasaw Nation, and

WHEREAS, the Chickasaw Tribal Legislature desires to correct a typographical error and omission in Title 6, Chapter 1, Article B of the Chickasaw Nation Code.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves of the following amendments to Title 6, Chapter 1, Article B of the Chickasaw Nation Code. Additions will be shown in red and deletions will be shown as stricken. All other Sections and Subsections of Title 6, Chapter 1, Article B will remain the same and are not affected by this resolution.

**CHAPTER 1
MARRIAGE**

**ARTICLE B
CHILD SUPPORT GUIDELINES**

SECTION 6-102.2

**CHILD SUPPORT ORDERS TO INCLUDE PROVISION FOR
INCOME ASSIGNMENT - VOLUNTARY INCOME
ASSIGNMENT.**

A. In all child support cases arising out of an action for divorce, paternity or other proceeding, the Court order the wage of the obligor subject to immediate income assignment, regardless of whether support payments by such parent are in arrears, unless:

1. one of the parties demonstrates and the Court finds there is good cause not to require immediate income withholding; or

2. a written agreement is reached between the parties which provides for an alternative arrangement.

B€. The obligated party may execute a voluntary income assignment at any time. The voluntary assignment shall be filed with the Court and shall take effect after service on the payor.

SECTION 6-102.6

CHILD SUPPORT GUIDELINES.

E. The child support guidelines are as follows:

17. Material change in circumstances:

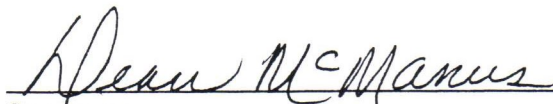
a. Child support orders may be modified upon a material change in circumstances.

b. Three years after the issuance of any child support order the Chickasaw Nation Child Support Enforcement Department of Youth and Family Services ("CSE") CSE may file an action for modification of child support based upon application of either party.

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on July 19, 2002, by a vote of 13 ayes, 0 nays, 0 abstentions.

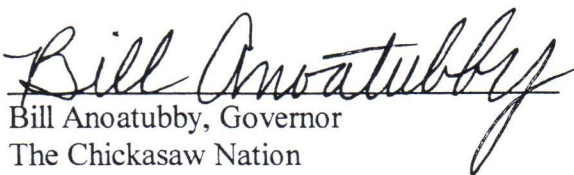


Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur:



Bill Anoatubby, Governor
The Chickasaw Nation

Date:

JUL 19 2002

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(Child Support Guidelines)**

Explanation: The Chickasaw Tribal Legislature enacted Child Support Guidelines for the Chickasaw Nation on June 21, 2002. By this Resolution, a typographical error and an omission will be corrected in those Child Support Guidelines.

Requested By: Wanda Blackwood Scott, Chairperson
Legislative Committee

Presented By: Wanda Blackwood Scott, Chairperson
Legislative Committee